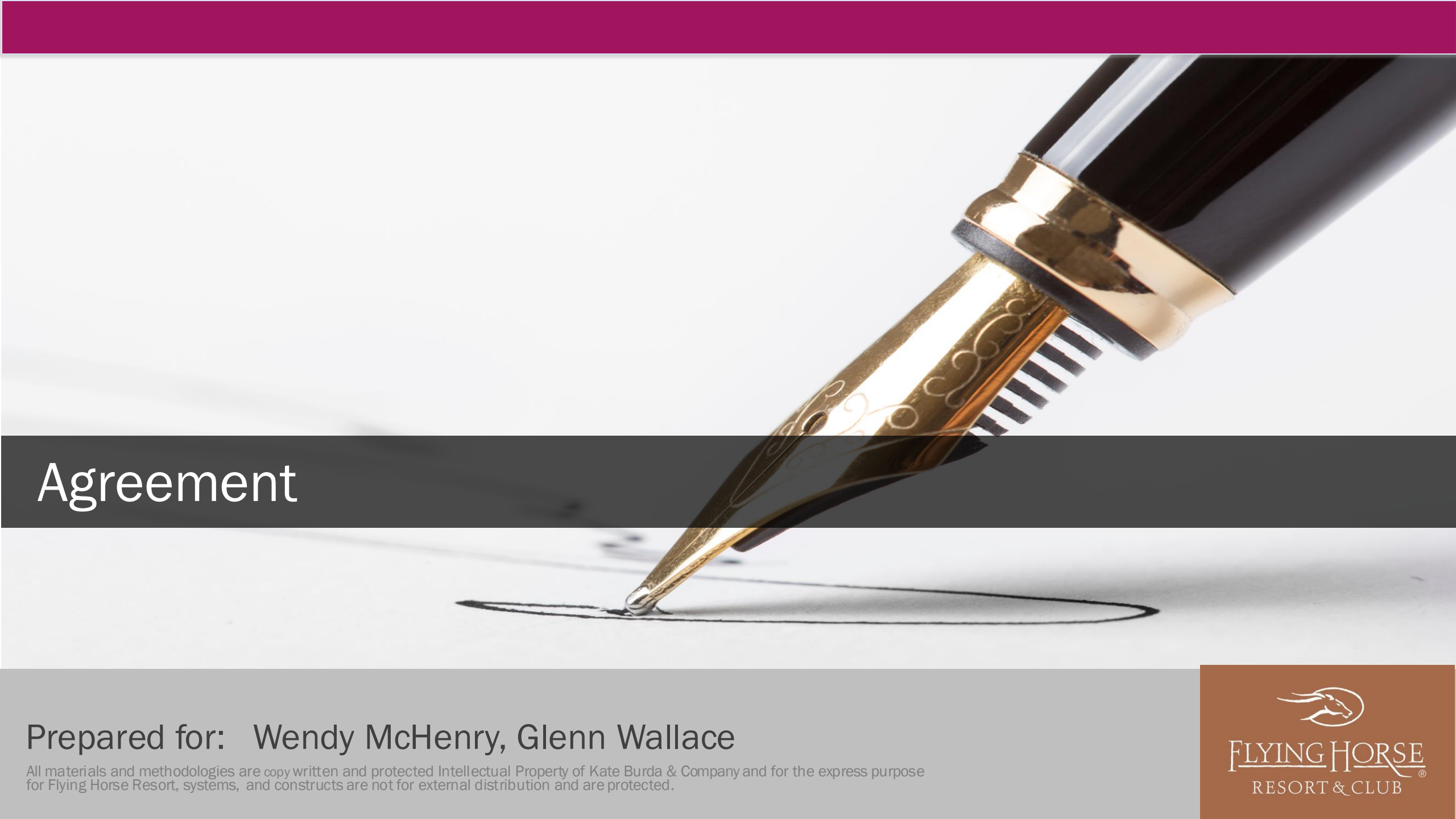




Agreement

Prepared for: Wendy McHenry, Glenn Wallace

All materials and methodologies are copy written and protected Intellectual Property of Kate Burda & Company and for the express purpose for Flying Horse Resort, systems, and constructs are not for external distribution and are protected.





1 – The Reveal | Operational Plan

What You Get

Insight Intelligence Report

So You Can

Understand what:

- Is working and needs to be repeated
- What is missing and needs to be built
- What isn't working and needs to be left behind

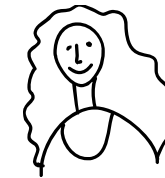
A deep dive into:

- 🔍 *Critical Crowd Involvement:* (Sales Team, Wendy, Glenn, Rev Mgmt., Marketing)
 - One-on-One Interviews
 - Rev. Mgmt. & Marketing Calls
 - Sales Team
- 🔍 *Deep dive into:*
 - Revenue Plan
 - Sales Action Plan
 - Marketing Plan
 - Reports, KPIs, and other relevant information
- 🔍 *Processes and Involvement:*
 - 'In the tent'
 - Current strategies, actions
 - Approach

Timeline

4 - 5 weeks

Kate & Co Team



Kate



Sharla



Tristan



Flying Horse Team

The Reveal- Outline of effort

Week 1:

1 to 2 weeks prior to Kick Off w/ Team

Communication Touchpoint to Team:

Communication sent to the team speaking to:

- Introduction to the project
- What we are expecting to gain
- Introduction of Kate and why she was chosen to partner with Flying Horse
- Next Steps – Kick off Call

Focus: Access – Information Dump

Access to Relevant Reporting (Revenue Plan, Sales Strategies, Budgets, KPIs, Marketing Plan, Weekly / Monthly Reports that are submitted, Owners Presentations)

Schedule of typical meetings- Rev mgmt., Marketing, Sales

What is being done with KB & Co:

- Deep Dive: Reading, research, understanding, thinking
- Plan Development of the Reveal: Build out of workstreams, milestones, supporting departments and framework and dependencies.

Flying Horses Resort Team input need:

- Access to the reports and information needed for KB & Co

Virtual

Week 2:

Kick Off w/ Team

Communication Touchpoint to Team:

Warm Invite “Premier” to call

Focus – Engagement Communication

Sharing with team of engagement and next steps.

What is being done with KB & Co:

- Call Design, focused outcomes

The Reveal- Outline of effort

Week 2:

(cont.)

Flying Horses Resort Team input need:

- Availability for individual calls,
- "In the Tent" - Rev. Mgmt. call, Sales Mtgs, Marketing Mtgs.

Virtual

Week 3:

In the Weeds

Communication Touchpoint w/ Glenn & Wendy – end of visit wrap up

Focus –

What is being done with KB & Co:

- Property visit
- Calls, Meetings, Research

Flying Horses Resort Team time / input needed:

- Availability for individual meetings
- "In the Tent" - Rev. Mgmt. call, Sales Mtgs, Marketing Mtgs.
- Wendy / Glenn- Wrap up

Onsite- 2 days

The Reveal - Outline of effort

Week 4:

Same song 2nd Verse

Focus – 2nd week

What is being done with KB & Co:

- Property visit
- Calls, Meetings, Research

Flying Horses Resort Team time / input needed:

- Availability for individual meetings
- "In the Tent" - Rev. Mgmt call, Sales Mtgs, Marketing Mtgs.

Virtual

Week 5:

In the Lab

Focus- Insight Intelligence Report Build

Putting together the report illustrating the findings, what the steps forward need to be, the prioritization. This report then frames the Vision-to-Value Roadmap of what is needed to implement.

What is being done with KB & Co:

- We are heads down putting together the deliverable of the *Insight Intelligence Report*.

Flying Horses Resort Team:

- Nothing Required- with exception of possible quicks asks for information that we may be missing.

Virtual



2 – Insight to Execution | Operational Plan

Creating the roadmap that builds:

Foundation:

- The strategies and goals of the Flying Horse Resort are connected to the larger vision and financial outcomes
- The steps to be taken or initiatives that support the strategies and anticipated outcomes.
- Revenue to Commercial Plan

Framework:

- Revenue Plan
- Needed programs, development, & output
- Technology and tools
- Resource allocation (capacity)

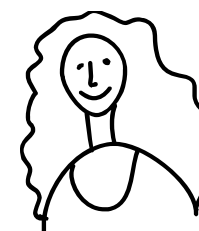
Focus:

- Milestones
- Stakeholder Engagement
- Advised KPI and Metrics

Timeline

3 weeks

Kate & Co
Team



Kate



Sharla



Tristan

What You Get

*Vision-to-Value
Roadmap
Implementation Plan*

So You Can

- Have a step-wise program that clarifies how we are going to get it done.
- Gives you insights to ‘*what the best do differently*’

Insight to Execution- Outline of effort

Week 6:

In the Weeds

Focus – Insight Intelligence Report

Sharing of insights, vetting and prioritizing.

What is being done with KB & Co:

- Property visit
- Calls, Meetings, Research

Flying Horses Resort Team time / input needed:

½ Day w/ Glenn and Wendy

Onsite?

Communication Touchpoint w/ Team- Thank you

Week 7 :

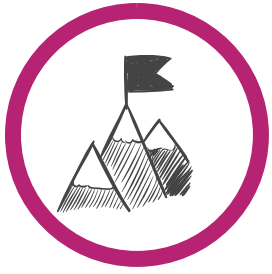
Focus: Vision-to-Value Roadmap Presentation (*Implementation plan*)

Outlines actions, training, support, through the lens of Foundation (what do we need to put into place in terms of people, approach), Framework (resources and tools), Focus (governance, cadence, accountability) of materials and needed support documentation. Prepare documentation that can guide further implementation steps.

Flying Horses Resort Team:

2 hours Glenn and Wendy review

Virtual



3 – Enhance, Install & Elevate | Operational Plan

Creating the roadmap that builds:

Foundation:

- Carrying out what is to create the “new way to work” w/ Sales and / or Marketing:
 - Science & Strategy
 - Process & Customer engagement
 - Art & Talent Optimization
 - Performance Metrics

Framework:

- Building of Tools, programs

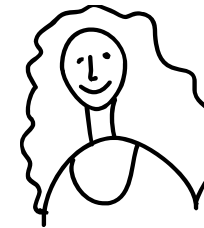
Focus:

- One-on-One Calls
 - Account Development
 - Skill Coaching
- Commercial Team Calls

Timeline

TBD

Kate & Co
Team



Kate



Tristan



Flying
Horse
Team

What You Get

*Rolling up our
Sleeves-
Implementation*

So You Can

- Taking what we outlined and prioritized done.
- Gives you insights to ‘*what the best do differently*’

Estimate of Effort- Levels of Horsepower

Pony Power

80 hrs. effort

Foundation:

Science & Strategy

Revenue Plan Revisit
Segment Strategy and Tactics Revisit

Process & Customer Engagement

Sales Efficacy (lite)
Sales Training (Skill)
Account Development (Strategy)
Marketing Efficacy
Marketing Account-Based Marketing

Art & Talent Optimization

Ignite Talent

Performance Metrics

KPI Revisit

Framework:

Revised Tools to support approach within sales and marketing

Focus:

One on One Calls with team
One on One Calls with leader (Leader Coach)
Quarterly Review

\$15,000

On going fractional commercial leader

TBD

Workhorse

120 hrs. effort

Foundation:

Science & Strategy

Revenue Plan Development and Design
Segment Strategy and Tactics Build

Process & Customer Engagement

Sales Efficacy
Sales Training (Skill)
Account Development (Strategy)
Marketing Efficacy
Marketing Account-Based Marketing
Marketing Programming

Art & Talent Optimization

Ignite Talent
Leadership Change

Performance Metrics

KPI Revisit

Framework:

Building and implementation of tools to support approach within sales and marketing and tech enablement

Focus:

One on One Calls with team
One on One Calls with leader (Leader Coach)
Quarterly Review

\$25,000

On going fractional commercial leader

TBD

Flying Horse Resort | Revenue Strategy Commercial Enablement

The Reveal

Week 1	◆ Immersion, Kick Off, and Communicated Project Plan	Virtual
Week 1 & 2	◆ Dive into reports, performance strategies, action plans	Virtual
Week 3	◆ Deep dive into approach	Market Visit
Week 4	◆ Continued exploration	Virtual
Week 5	◆ Insight Production	Virtual
Week 6	◆ Insight Intelligence-Presentation	1/2 day

Deliverables: *Insight Intelligence Report, Executive Summary, support documents, findings, and recommendations.*

\$12,000

Insight to Execution

Week 7	◆ Vision-to-Value Roadmap Development-	Virtual
Week 8	◆ Vision-to-Value Presentation	Virtual
Week 9	◆ Buffer	

Deliverable: Vision-to-Value Roadmap, Revenue Plan

\$8,000

Investment



Part 1: The Reveal

\$12,000

Part 2: **Insight** to Execution

\$ 8,000

Total

\$20,000

Less: Friends and Family

-\$ 2,000

**Less: Move forward*

-\$ 2,000

Total

\$18,000

Bank of Hours: (Beyond the First Phase)

We operate on a 'bank of hours' system for this engagement, which means that we would allocate hours upfront for the project. These hours are drawn upon as we progress through the engagement. This approach helps ensure that we manage our time and resources efficiently while maintaining the quality of our work.

It also provides a clear structure for both parties, as it allows us to monitor the effort being invested and adjust as necessary to meet the project's goals. By having this bank of hours, we can protect ourselves from overextending our resources while ensuring that all necessary work is completed within the agreed scope. Any hours beyond the agreed scope will be billed at our standard hourly rate. We'll notify you in advance if additional time is needed, ensuring full transparency and alignment throughout the project.

Flying Horse Resort will receive continued communication throughout the engagement:

- Progress report delivered every two weeks w/ Proposed Timeline update
- Follow up from all meetings and outcomes of discussions
- Any additional information team deems necessary

Name: Flying Horse Resort
Address: 1880 Weiskopf Point
Colorado Springs, CO 80921

Project dates: March

Contact Name: Wendy McHenry
Title: Managing Director
Agreement: Commercial Effectiveness / Efficiency Study

- Engagement may necessitate access of systems, tools, IT team members, and team members within leadership.
- Developed tools, programs, and methodologies will be the property of Flying Horse Resort.
- Invoicing will be paid three times throughout the project:
 - 50% at the start of work
 - 25% at the halfway point of the engagement
 - 25% at the completion
 - ‘Bank of Hours’ described on slide 27 of this document

The client identified above agrees to engage Kate Buda & Co to furnish specific Consulting, Leadership Constructs, etc. (hereinafter “Services”) upon the Standard Terms and Conditions attached hereto. Kate Burda & Co shall perform the Services outlined in the attached Scope of Work. In return, Flying Horse Resort agrees to the outlined in the Investment.

This Agreement constitutes the entire agreement between Client and Kate Burda & Co and replaces all prior oral or written communications between the parties.

Signatures:

By signing below, the undersigned certify that they have read and understand and agree to be legally bound by the terms and conditions of this Agreement, including the terms and conditions contained in any attached Work Scope and Fee Schedules.

Flying Horse Resort

Date: _____

By: _____

(Authorized Signature)

Kate Burda & Company, LLC

Date: Kathleen J Burda

By: February 15, 2024

Kate Burda

Principal / Founder

STANDARD TERMS AND CONDITIONS:

- 1. Where Services may be Performed:** The consulting services of Kate Burda & Co may be performed at their offices, the offices of the Client or any other places that are appropriate as determined by Kate Burda & Co and approved by Client.
- 2. Personnel for Performance of Services:** The personnel within Kate Burda & Co and sub-contractors who will participate in the delivery of services under this Agreement will be those described in the relevant Attachments and others as mutually agreed upon by the parties.
- 3. Compensation:** Client shall pay charges for Services rendered by Kate Burda & Co in accordance with the fee schedule set forth on slide 26 & 27 or, if no fee schedule is set forth in the “Investment” portion of the proposal, in accordance with Kate Burda & Co standard rates, minimums, and fee policies that are in effect when the Services are rendered. All out-of-pocket expenses incurred by Kate Burda & Co in the course of rendering Services will be added to invoices, including travel, meals, lodging, supplies, and incidental expenses. Services provided on a time and materials basis and/or any expenses should be invoiced monthly. Client shall pay to Kate Burda & Co the amounts specified in each invoice issued by Kate Burda & Co within the terms specified in the invoice. Amounts not paid shall bear interest at the lesser of (i) one and one-half percent (1.5%) per month or (ii) the maximum amount allowed by law. Kate Burda & Co may suspend the provision of Services during any period when Client has failed to timely pay Kate Burda & Co any amount owed under this Agreement hereunder. In any action relating to collecting an amount owed by Client under this Agreement, Kate Burda & Co shall be entitled to recover its costs of collection, including attorneys' fees and other legal costs. Except as otherwise set forth investment /Page 27 & 28 Kate Burda & Co may, in its sole discretion, change the rates of compensation for any fees that are outlined in the proposal upon sixty (60) days' prior written notice to Client.
- 4. Complete Agreement:** This Agreement sets forth the entire understanding of the parties as to its subject matter and may not be modified except in writing by both parties.
- 5. Independent Contractor Relationship:** The relationship of Kate Burda & Co to the Client is that of an independent contractor under contract with the Client and not that of an agent, servant or employee. Consistent with this relationship, neither party to this Agreement has the authority to act for, represent or bind the other party in any manner without obtaining that party's prior written consent or approval.
- 6. Proprietary Information:** The techniques and ideas provided by Kate Burda & Co under this Agreement constitute confidential proprietary information belonging to Kate Burda & Co that are made available to the Client for its use under this Agreement. Employees and staff of the Client may only use this information in connection with the work that they do for the Client. The Client agrees to take all reasonable steps necessary to safeguard the confidentiality of these techniques and ideas. The Client grants to Kate Burda & Co the right to use the statistical results of any sales campaign or activities planned and executed during the term of this agreement, as necessary to create results.
- 7. Ownership of Written Work:** All written work products produced by Kate Burda & Co pursuant to this Agreement shall become the property of the Client, except for analytical survey protocols and predictive models which, even though non-proprietary and distributed to the Client for its use shall remain the property of and under copyright to Kate Burda & Co its agents, or contractors. Raw survey data and interview notes are the property of Kate Burda & Co.
- 8. Termination of Agreement:** Either party may terminate this Agreement for any reason upon written notice by registered or certified mail, return requested addressed to the other party. If this Agreement is terminated by the Client for any reason, the Client in all such terminations shall be liable and shall pay to Kate Burda & Co at the effective date of termination all payments required to be made under the terms of the payment schedule set out in the attachments, plus reasonable expenses. Notice must be given 60 days prior to effective termination date of agreement.
- 9. Client Duty to Co-operate:** To enable Kate Burda & Co to furnish the consulting services called for under this Agreement, the Client agrees to provide Kate Burda & Co with the services and documentation described in the Scope of Work.
- 10. Indemnification:** The Client agrees to indemnify and hold Kate Burda & Co harmless from all claims, losses, expenses, fees including attorney fees, costs, and judgments that may be asserted against Kate Burda & Co that result from the acts or omissions of the Client, the Client's employees and the Client's agents. Kate Burda & Co agrees to indemnify and hold Client harmless from all claims, losses, expenses, fees including attorney fees, costs, and judgments that may be asserted against Client that result from the acts or omissions of Kate Burda & Co, Kate Burda & Co employees and Kate Burda & Co agents.
- 11. Guarantees:** Kate Burda & Co does not guarantee achieving any revenue goals or projections, nor does it guarantee achieving any specific performance objectives either set forth by Client or made by Kate Burda & Co in the course of bidding, planning or managing the sales campaign or work covered under the terms of this agreement.
- 12. Legal action:** If any legal action is brought for the enforcement of this agreement, or because of any alleged dispute, default, mistake or misrepresentation or otherwise in connection with any provisions of this agreement, the successful or prevailing party or parties shall be entitled to recover reasonable legal attorney fees and other costs incurred in addition to any other relief to which such parties may be entitled. It is further agreed that the sole jurisdiction with respect to any such legal action shall be in the County of Denton, State of Texas.
- 13. Notice:** All notices required to be given by one party to the other under this Agreement shall be by either commercial overnight delivery service or certified mail, return receipt requested, to the parties at the respective addresses set forth above or to such other address as the party to receive the notice has designated by notice to the other party.
- 14. Liability:** In no event shall Kate Burda & Co be liable to the Client or to customers of the Client for any damages related to any failure or delay of Kate Burda & Co in the delivery of the services under this agreement or any Work Plan, resulting from, including without limitation, delays caused by Acts of God, Fire, War, Riots, Strikes, Acts of Terrorism, Quarantines or Embargoes.
- 15. Severability:** If any provision of this Agreement is held invalid or otherwise unenforceable, the enforceability of the remaining provisions shall not be impaired thereby.

KATE BURDA

kate@kateburda.com

972-567-7792

SHARLA HIBBERD

sharla@kateburda.com

214-538-9996

kateburda.com

